IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No.307

CP(CAA)/11(AHM)2023
in
CA(CAA)/58(AHM)2022

Order under Sections 230-232 of Co. Act, 2013

IN THE MATTER OF:

Torrent Gas Pune Limited **.....Applicants**
Torrent Gas Moradabad Limited
Sanwariya Gas Limited
Torrent Gas Private Limited

Order delivered on 11/07/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

ORDER

The case is fixed for pronouncement of order. The order is pronounced in open Court vide separate sheet.

-SD-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-SD-

SHAMMI KHAN
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
(COURT NO. II)

CP (CAA)/11/NCLT/AHM/2023
IN
CA(CAA)/58/NCLT/AHM/2022

(Sections 230-232 and read with other relevant provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016)

In the matter of Scheme of Arrangement
in the nature of Amalgamation

OF

TORRENT GAS PUNE LIMITED
(Petitioner Company No.1 /Transferor Company)

AND

TORRENT GAS MORADABAD LIMITED
(Petitioner Company No.2 /Transferor Company)

AND

SANWARIYA GAS LIMITED
(Petitioner Company No.3 /Transferor Company)

WITH

TORRENT GAS PRIVATE LIMITED
(Petitioner Company No.4/Transferee Company)

AND
THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Pronounced on: 11.07.2023

Coram:
SHAMMI KHAN,
HON'BLE MEMBER (JUDICIAL)
AJAI DAS MEHROTRA,
HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

In the matter of:

Torrent Gas Pune Limited,
(CIN: U40106GJ2015PLC117589) and having its Registered Office at 1st Floor, C Block, Samanvay, 600, Tapovan, Ambawadi, Ahmedabad-380 015, Gujarat.

.... Petitioner Company No. 1/ Transferor Company

Torrent Gas Moradabad Limited,
(CIN: U40200GJ2005PLC112871) and having its Registered Office at 1st Floor, C Block, Samanvay, 600, Tapovan, Ambawadi, Ahmedabad-380 015, Gujarat.

....Petitioner Company No. 2/Transferor Company

Sanwariya Gas Limited,
(CIN: U45400GJ2009PLC133563) and having its Registered Office at

'Samanvay', 600, Tapovan, Ambawadi,
Ahmedabad-380 015, Gujarat.

....Petitioner Company No. 3/Transferor Company

Torrent Gas Private Limited,
(CIN:U40100GJ2018PTC102554) and having its Registered Office at 'Samanvay', 600, Tapovan, Ambawadi, Ahmedabad-380 015, Gujarat.

....Petitioner Company No. 4/Transferee Company

For the Petitioners : Ms. Swati Soparkar, Advocate.
For the Income Tax : Ms. Pankti Shah, Advocate for Ms. Maithili D. Mehta, Advocate.

ORDER

1. This joint petition has been filed by the petitioner companies under Sections 230-232 read with other applicable provisions of the Companies Act, 2013 (for brevity 'the Act') read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 seeking sanction of the Scheme of Arrangement in the nature of Amalgamation of Torrent Gas Pune Limited (hereinafter referred to as 'Transferor Company No.1'), Torrent Gas Moradabad Limited (hereinafter referred to as 'Transferor Company No.2'), and Sanwariya Gas Limited (hereinafter referred to as 'Transferor Company No.3'), with Torrent Gas Private Limited (hereinafter referred to as 'Transferee Company') with

effect from 01.04.2022, being the Appointed Date as mentioned in the Scheme.

2. From the records, it is seen that the first motion application was filed before this Tribunal being CA (CAA) 58 of 2022 sought directions for dispensation of the meetings of the equity shareholders of all the Petitioner Companies, in view of the consent affidavits of the Equity Shareholders, and sought directions for holding and convening the meetings of the Secured and Unsecured Creditors of the Petitioner Companies. The application was allowed vide order dated 21.12.2022 and rectification order dated 10.01.2023, by issuing directions for notices of meetings and publications in newspapers, English daily 'Indian Express' Ahmedabad edition and Gujarati daily 'Sandesh' Ahmedabad editions. Directions were also issued for service of notice to concerned Regulatory Authorities.

3. The directions issued by the said order were duly complied with by the Petitioner Companies and compliance Affidavits were duly filed with the Hon'ble Tribunal by the Petitioner Companies on 06.02.2023. In compliance with the directions for convening the meetings, the separate meetings were duly convened on 23.02.2023 for Unsecured Creditors of all the companies and on 24.02.2023 for the Secured Creditors of all the companies. The

Chairman appointed for the said meetings has filed his reports for the result of said meetings alongwith affidavit dated 02.03.2023. The said reports confirm the approval to the proposed scheme unanimously by the secured creditors of all the companies, and unsecured creditors of all the Transferor Companies. In case of the unsecured creditors of the Transferee Company, approval was granted by requisite majority of 97.37%.

4. The Petitioner Companies, thereafter, filed the second motion joint petition, being CP (CAA) No. 11 of 2023 on 9.03.2023 which was admitted vide order dated 22.03.2023. Directions were issued to publish Notice of Hearing of Petition in the newspapers, 'Sandesh' in Gujarati and 'Indian Express' in English in Ahmedabad editions and notice of hearing of the Petition to the statutory authorities. The said directions were complied with and compliance affidavits have been filed for the same on 12.04.2023.

5. In response to the notice issued to the Regional Director (RD), North Western Region, MCA, the RD has filed common report on 06.04.2023, alongwith report from Registrar of Companies dated 13.02.2023 , seeking following directions:

   (i) The Transferee Company to comply with Section 232 (3) (i) of the Companies Act, 2013 and pay additional fees for the increased Authorised Capital , if applicable.

   (ii) To clarify the anomaly/discrepancy with regard to the existing charges and number of Secured Creditors of some of

the Petitioner Companies as compared to information on MCA 21 Portal.

6. In response to the notice to the Official Liquidator (OL), the Office of the OL vide its report dated 29.03.2023, has filed its observations seeking following directions:

(i) The transferor companies to preserve their books of accounts, papers and records and not to dispose them without prior permission of the Central Govt. as per the provisions of the section 239 of the Companies Act, 2013;

(ii) The transferor companies to ensure statutory compliance of all applicable laws and also on sanctioning of the scheme, the transferor companies not to be absolved from any of their statutory liability, in any manner;

(iii) The transferee company to pay such cost and expenses to the office of the official liquidator for the transferor companies or any such amount as may be considered appropriate by this Bench.

(iv) The petitioner companies to lodge a certified copy of order along with the Scheme, with the concerned superintendent of stamp duty for determination of stamp duty payable, if any.

7. The Petitioner Companies have filed a common additional affidavit dated 24.04.2023 in response to the said representations of the Regional Director, Registrar of Companies as well as the Income Tax Department. The submissions made for aforesaid observations are as follows:

(i) For differential fees, the transferee company gave undertaking for compliance of section 232(3)(i) of the Companies Act, 2013

(ii) Note explaining the discrepancy with regard to existing charges and number of Secured Creditors is placed on record and is found to be satisfactory.

(iii) The transferee company gave undertaking to preserve the books of accounts, papers and records of the transferor companies and not to dispose of the same without prior permission of the Central Government as per the provisions of section 239 of the Companies Act, 2013

(iv) The transferor companies gave undertaking for statutory compliance of all applicable laws;

(v) The transferee company gave undertaking to pay such cost and expenses to the regulatory authorities;

(vi) The petitioner companies undertook to lodge a certified copy of order along with the Scheme, with the concerned superintendent of stamp duty for determination of stamp duty payable, if any.

8. The No Objection letter from the Sectoral Regulatory Authority, viz., Petroleum and Natural Gas Regulatory Board dated 3.04.2023 has been placed on record.

9. The Ld. Counsel for the Income Tax Department submitted joint representation dated 23.05.2023 for the Petitioner Companies. Income Tax Department has stated that they have no objection to the Scheme, subject to reserving their right to

invoke relevant provisions of the Act in case of non-compliance of relevant provisions of the Income Tax Act, with regard to the Scheme of Arrangement. All the Petitioner Companies have already undertaken to abide by all the applicable provisions of the Income Tax Act.

10. Pursuant to the order dated 09.03.2023 and issuance of notices to the statutory authorities and publication of the notice in the local dailies, no representation is received.

11. The petitioner companies have filed their respective audited financial statements as on 31.03.2022, which are annexed with the petition.

12. At the time of hearing on 28.04.2023, Mr. Shiv Pal Singh, Asst. Director appearing for the Regional Director, stated that they have no objection to the approval of the scheme. Similarly, Mr. Suresh Shrivastava, appearing for the Official Liquidator on 28.04.2023 stated that in view of the affidavit dated 24.04.2023 of the petitioner companies, OL office has no objection if the scheme is approved. During the hearing on 20.06.2023, Ms. Pankti Shah, learned counsel for the Income Tax Department stated that since the proceedings can be carried out against the Transferee Company they do not have any objection, if the scheme is approved.

13. The further affidavit dated 24.04.2023 has been placed on record with Schedules of Assets of all the Petitioner Transferor Companies.

14. Heard submissions made by Mrs. Swati Soparkar, learned counsel for the petitioner companies and perused documents placed on record. Considering the approval accorded by the members and creditors of the Petitioner Companies to the proposed Scheme, and the no objection given by the respective regulatory and statutory authorities, it appears that the requirements of the provisions of section 230 and 232 are satisfied by the petitioner companies. It seems that the proposed Scheme of Arrangement is bona fide and in the interest of the shareholders and creditors. Therefore, petition is allowed and the Scheme envisaging Amalgamation of M/s. Torrent Gas Pune Limited (Transferor Company No.1), M/s.Torrent Gas Moradabad Limited (Transferor Company No.2, M/s. Sanwariya Gas Limited (Transferor Company No.3) with M/s. Torrent Gas Private Limited (Transferee Company)is hereby sanctioned. It is declared that the said sanctioned scheme shall be binding on the petitioner companies and their shareholders, creditors and all concerned under the scheme.

14.1. Notwithstanding the above, if any, deficiency is found or, violation committed qua any enactment, statutory rule or

regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the Petitioners.

14.2 While approving the Scheme as above, we further clarify that this order should not be construed as an order in any manner granting exemption from payment of stamp duty, or taxes including income tax, GST etc., or any other charges or payment in accordance with law, or any kind of waiver in respect of any permission / compliance with any other requirement which may be specifically required under any law.

14.3 **The Scheme is sanctioned with following directions:**

i. The Scheme of Arrangement as annexed herewith as **"Annexure A**" is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their Shareholders and Creditors and all concerned under the Scheme.

ii. It is declared that the Transferor Companies shall be dissolved without winding up.

iii. All the properties mentioned in schedule as **"Annexure B",** right and powers of the Undertakings of all the three Transferor Companies specified in the schedules hereto and all the other property, rights and powers of the Transferor

Companies, be transferred without any further act or deed to the Transferee Company and accordingly the same shall, pursuant to Section 232 of the Act, vest in the Transferee Company for all the estate and interest of the Transferor Companies therein but subject nevertheless to all charges now affecting the same, if any.

iv. The Transferee Company (along with its nominees) holds 100% of the issued, subscribed and paid-up share capital of the Transferor Companies, either directly or indirectly. Accordingly, all the Transferor Companies are direct or indirect wholly owned subsidiaries of the Transferee Company.

Upon the Scheme becoming effective, no shares of the Transferee Company shall be allotted in lieu or exchange of the holding of the Transferee Company in the Transferor Companies and the share capital of the Transferor Companies shall stand cancelled on the Effective Date without any further act, instrument, or deed.

v. All proceedings, if any, now pending by or against any of the Transferor Companies be continued by or against the Transferee Company.

vi. All workers / employees of the Transferor Companies shall be deemed to become the workers /employees of the Transferee Company with effect from the Appointed Date, and shall stand absorbed in the Transferee Company in accordance with the Scheme without any interruption of service and on terms and conditions no less favourable than those on which they are engaged by the Transferor Companies, as on the

Effective Date

vii. The Petitioner companies within thirty days of the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the entire Undertakings of the Transferor Companies shall stand transferred to the Transferee Company and the Registrar of Companies shall place all documents relating to the Transferor Companies to the file kept by him in relation to the Transferee Company and the files relating to the said four companies shall be treated accordingly.

viii. All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal who shall issue certified copy of this order along with the Scheme immediately

ix. The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme as Annexure-A and Schedule of Assets of the Transferor Companies attached as Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

x. The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

xi. The legal fees and expenses of the office of the Regional Director are quantified at Rs.10,000/-in respect of the four

petitioner companies. The said fees to the Regional Director shall be paid by the Transferee Company.

The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- in respect of three petitioner Transferor Companies. The said fees to the Official Liquidator shall be paid by the Transferee Company.

xii. Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary

15. The Company Petition CP(CAA) No. 11 of 2023 connected with CA(CAA) No. 58 of 2022 are disposed of, in terms of above order.

-SD-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-SD-

SHAMMI KHAN
MEMBER (JUDICIAL)

Sudha-Steno / Rahul-LRA

Annexure "A"

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ANNEXURE -J

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COMPOSITE SCHEME OF ARRANGEMENT IN NATURE OF AMALGAMATION OF

TORRENT GAS PUNE LIMITED

AND

TORRENT GAS MORADABAD LIMITED

AND

SANWARIYA GAS LIMITED

WITH

TORRENT GAS PRIVATE LIMITED

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

(A) PREAMBLE:

This Composite Scheme of Arrangement ("the Scheme") is presented under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 and the rules and regulations thereunder and involves Amalgamation of Torrent Gas Pune Limited, Torrent Gas Moradabad Limited and Sanwariya Gas Limited with Torrent Gas Private Limited. All the three Transferor Companies are the direct and/or indirect Wholly Owned Subsidiaries of the Transferee Company. As a result the transfer of the undertaking of all the Transferor Companies to the Transferee Company shall not involve any consideration to be paid in cash or by way of issue of shares.

This Scheme also provides for various other matters consequential or otherwise integrally connected therewith.

(B) BACKGROUND OF THE COMPANIES:

i) Torrent Gas Pune Limited ("TGPNL" Or "Transferor Company – 1"), is a closely held public limited company, originally incorporated on 3rd March 2015 under the provisions of the Companies Act, 2013, in the name and style of Mahesh Gas Limited before the Registrar of Companies, Delhi. The registered office was shifted to Pune in the state of Maharashtra vide certificate dated 14th January 2019. The name of the company was changed to Torrent Gas Pune Limited vide fresh certificate dated 25th August 2020. The registered office has been shifted to the state of Gujarat vide fresh certificate issued by Registrar of Companies, Gujarat dated 29th October 2020. The current corporate identity number is U40106GJ2015PLC117589.

The registered office of the company is currently situate at 1st Floor, C Block, Samanvay, 600, Tapovan, Ambavadi, Ahmedabad 380015 in the state of Gujarat. The company is engaged in business of laying, building, operating and expanding City Gas Distribution Network in the Geographical Areas (GAs) authorized by the Petroleum and Natural Gas Regulatory Board (PNGRB). TGPNL is also engaged in the distribution and supply of Piped Natural Gas (PNG) to residential, commercial and industries and Compressed Natural Gas (CNG) to vehicles in the Pune District (Except Areas Already Authorized) of Maharashtra. It is a Wholly Owned Subsidiary of Torrent Gas Private Limited, the Transferee Company under the present scheme.

ii) Torrent Gas Moradabad Limited ("TGML" Or "Transferor Company – 2") is a closely held public limited company originally incorporated on 8th September 2005 under the provisions of the Companies Act, 1956, in the name and style of Siti Energy Limited, before the Registrar of Companies, Delhi and Haryana. The name of the company was changed to Torrent Gas Moradabad Limited vide fresh certificate dated 9th August 2019 issued by Registrar of Companies, Delhi. The registered office of the company has been shifted to the state of Gujarat vide certificate dated 21st February 2020. The current corporate identity number is U40200GJ2005PLC112871. The registered office of the company is situate at 1st Floor, C Block, 'Samanvay' 600, Tapovan, Ambavadi, Ahmedabad 380 015 in the state of Gujarat. It is engaged in laying, building, operating and expanding City Gas Distribution (CGD) Network in the Geographical Areas (GAs) authorized by the Petroleum and Natural Gas Regulatory Board (PNGRB). TGML is also engaged in distribution and supply of Piped Natural Gas (PNG) to residential, commercial and industries and Compressed Natural Gas (CNG) to vehicles in the Moradabad District (Part/city) of Uttar Pradesh. It is a Wholly Owned Subsidiary of Torrent Gas Private Limited, the Transferee Company under the present scheme.

iii) Sanwariya Gas Limited ("SWGL" Or "Transferor Company-3") is today, a closely held public limited company, originally incorporated on 19th February 2009 as a private limited company under the provisions of the Companies Act, 1956, in the name and style of

DSM Infratech Private Limited before the Registrar of Companies, Uttar Pradesh. The name of the company was changed to Saumya DSM Infratech Private Limited vide fresh certificate dated 4th June 2009. The status of the company was changed to public limited company and consequently the name was changed to Saumya DSM Infratech Limited vide certificate dated 11th February 2010. The name of the company was further changed to Sanwariya Gas Limited vide certificate dated 28th February 2014. The registered office of the company has been shifted to Gujarat vide certificate dated 5th July 2022 issued by Registrar of Companies, Gujarat. The current corporate identity number is U45400GJ2009PLC133563. The registered office of the company is situate at 'Samanvay', 600, Tapovan, Ambavadi, Ahmedabad 380 015 in the state of Gujarat. It is engaged in business of laying, building, operating and expanding City Gas Distribution (CGD) Network in the Geographical Areas (GAs) authorized by the Petroleum and Natural Gas Regulatory Board (PNGRB). SGL is also engaged in the distribution and supply of Piped Natural Gas (PNG) to residential, commercial and industries and Compressed Natural Gas (CNG) to vehicles in the Mathura District (part/city) of Uttar Pradesh. It is a Wholly Owned Subsidiary of Torrent Gas Moradabad Limited, the Transferor Company-2 which in turn is a Wholly Owned Subsidiary of Torrent Gas Private Limited, the Transferee Company under the present scheme. Hence, SWGL is an indirect Wholly Owned Subsidiary of Torrent Gas Private Limited, the Transferee Company.

iv) Torrent Gas Private Limited, ("TGPL" Or "Transferee Company") is a private limited company incorporated on 28th May 2018 under the provisions of Companies Act, 2013 before the Registrar of Companies, Gujarat. The corporate identity number is U40100GJ2018PTC102554. The registered office of the company is situate at 'Samanvay' 600, Tapovan, Ambavadi, Ahmedabad 380 015 in the state of Gujarat. It is engaged in laying, building, operating and expanding City Gas Distribution (CGD) Network in the Geographical Areas (GAs) authorized by the Petroleum and Natural Gas Regulatory Board (PNGRB). TGPL is also engaged in the distribution, supply of Piped Natural Gas (PNG) to residential, commercial and industries and Compressed Natural Gas (CNG) to vehicles and other associated businesses. Under the 9th & 10th CGD

Bidding Rounds Petroleum and Natural Gas Regulatory Board (PNGRB) has granted authorization for total eleven (11) Geographical Areas to TGPL for development of the CGD network for supply of Piped Natural Gas (PNG) to residential, commercial and industries and Compressed Natural Gas (CNG) to vehicles in these regions. It is a Wholly Owned Subsidiary of Torrent Investments Private Limited.

(C) RATIONALE OF THE SCHEME:

All the four CGD companies belong to the same group of management and are engaged in similar line of activities, viz. implementation and operation of City Gas Distribution (CGD) networks for supply of Piped Natural Gas (PNG) to residential, commercial and industries and Compressed Natural Gas (CNG) to vehicles in different geographical regions of the Country.

The key objectives of this Composite Scheme of Arrangement are:

i) Achieve business synergy through consolidation of activities of all the group companies operating in different regions of the Country.

ii) Simplification and Consolidation of group structure and reduction in number of entities resulting in greater management focus, control and governance Compliance by streamlining of operations and asset utilization;

iii) Achieve economies in business operations, provide optimal utilization of resources and greater administrative efficiencies and thereby optimize profitability.

iv) Devise uniform Corporate policies for the common business activity and increase the overall effectiveness of its operations.

v) Have a large based Capital structure and Assets structure to increase the financial leverage.

1. DEFINITIONS:

In this Scheme (as defined hereunder), unless inconsistent with the subject or context, the following expressions shall have the following meaning:

1.1 **"Act" or "The Act"** means the Companies Act, 1956 or Companies Act, 2013, as the case may be, the rules and regulations made thereunder and will include any statutory modification or re – enactment thereof for the time being in force;

1.2 **"Appointed Date"** means 1st April 2022 or such other date as may be fixed or approved by the NCLT or such other competent authority;

1.3 **"Effective Date"** means later of the date on which the certified copy of the Order of the NCLT sanctioning the Scheme of Amalgamation and Arrangement is filed with the Registrar of Companies of Gujarat at Ahmedabad;

1.4 **"NCLT"** or **"Tribunal"** means the National Company Law Tribunal, Ahmedabad Bench as constituted and authorized as per the provisions of the Act;

1.5 **"Scheme"** or **"the Scheme"** or **"this Scheme"** means the Composite Scheme of Arrangement in nature of Amalgamation in its present form or with any modification(s) and amendment(s) made under Clause ___ of this Scheme from time to time and with appropriate approvals and sanctions granted or directed by the Tribunal or such other competent authority, as may be required under the Act, as applicable, and under all other applicable laws;

1.6 **"Transferee Company" or "TGPL"**, means Torrent Gas Private Limited, a company incorporated under the Act and having its registered office in the state of Gujarat;

1.7 **"Transferor Company– 1" or "TGPNL"** means Torrent Gas Pune Limited, a company incorporated under the Act and having its registered office in the state of Gujarat;

1.8 **"Transferor Company – 2" or 'TGML'** means Torrent Gas Moradabad Limited, a company incorporated under the Act and having its registered office in the state of Gujarat;

1.9 **"Transferor Company-3" or 'SWGL'** means Sanwariya Gas Limited, a company incorporated under the Act and having its registered office in the state of Gujarat;

1.10 **"Undertakings"** mean and include the undertakings of all the Transferor Companies comprising of all assets, investments and

liabilities of these companies on a going concern basis and shall include (without limitation) the following:

(a) All the assets and properties of the Transferor Companies including, without limitation, offices, plants and machineries, equipment, interests, capital work-in-progress, installations, appliances, tools, accessories, freehold, leasehold and any other title, interests or rights in such immovable assets, buildings and structures, offices, furniture, fixtures, office equipment, computers, recorded or unrecorded goodwill and other intangible assets and all stocks on the Appointed Date;

(b) All the debts, liabilities, duties and obligations of the Transferor Companies as on the Appointed Date both present and future, whether provided for or not in the books of accounts or disclosed in the balance sheet, whether secured or unsecured, all guarantees, assurances, commitments and obligations of any kind, nature or description, whether fixed, contingent or absolute, asserted or not asserted, matured or not matured, liquidated or unliquidated, accrued or not accrued, known or unknown, due or to become due, whenever or however arising pertaining to the Transferor Companies;

(c) Without prejudice to the generality of sub – clause(a) and (b) above, the Undertakings of the Transferor Companies shall include:

(i) All movable and immovable properties, assets, including leasehold rights, tenancy rights, industrial and other licenses, registrations, permits, authorizations, trademarks, copyrights, patents and other industrial and intellectual properties, electrical connections, telephones, telex, facsimile and other communication facilities and equipment, rights and benefits of all agreements, pending applications and all other interests, rights and powers of every kind, nature and description whatsoever, privileges, liberties, easements, advantages, benefits and approvals of the Transferor Companies;

(ii) All current assets including inventories; sundry debtors, receivables, cash and bank accounts (including bank balances), fixed deposits, loans and advances, actionable claims, bills of exchanges and debit notes of the Transferor Companies;

(iii) All agreements, contracts, arrangements, understandings, engagements, deeds and instruments including lease/licenses

agreements, tenancy rights, equipment purchase agreements, and other agreements with the customers, purchase and other agreements/ccntracts with the suppliers/manufacturers of goods/service providers and all rights, titles, interests, claims and benefits there under of the Transferor Companies;

(iv) All application monies, advance monies, earnest monies and/or security deposits paid or deemed to have been paid and payments against other entitlements of the Transferor Companies;

(v) All intellectual property rights (including applications for registrations of the same and the rights to use such intellectual property rights), trade and service names and marks, patents, copyrights, and other intellectual property rights of any nature whatsoever, trade secrets, confidential information, domain names, books, records, files, papers, software licenses (whether proprietary or otherwise), data, and all other records and documents, whether in physical or electronic form relating to the business activities and operations of the Transferor Companies;

(vi)All employees of the Transferor Companies.

It is clarified that all debts, loans and liabilities, duties and obligations of the Transferor Companies as on the Appointed Date and all other liabilities which may accrue or arise after the Appointed Date but which relate to the period on or up to the day of the Appointed Date and all liabilities which may accrue or arise after the Appointed Date for the period till the Effective Date, shall be the debts, loans and liabilities, duties and obligations of the Transferee Company including any encumbrance on the assets of the Transferor Companies or on any income earned from those assets.

2. DATE OF TAKING EFFECT AND OPERATIVE DATE

This Scheme as set out herein in its present form or with any modification(s), as may be approved or imposed or directed by the NCLT or made as per Clause 20 of this Scheme, as the case may be, shall have legal effect and force or be effective from the Appointed Date and shall be operative from the Effective Date.

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3. SHARE CAPITAL OF THE COMPANIES

3.1 The authorised, issued, subscribed and paid-up share capital of TGPNL, the Transferor Company-1 as on 31st July 2022 is as under:

Particulars	Amount (in Rs)
Authorised share capital	
20,00,00,000Equity shares of Rs. 10 each	200,00,00,000
Total	**200,00,00,000**
Issued, subscribed and paid-up share capital	
16,36,00,000Equity shares of Rs. 10 each	163,60,00,000
Total	**163,60,00,000**

There is no change in the authorised, issued, subscribed and paid up share capital of TGPNL after the aforesaid date. Further, as on the date of approval of Scheme by Board of Directors of the Companies, TGPL, the Transferee Company (along with its nominees) holds 100% of issued, subscribed and paid-up share capital of the Transferor Company-1.

3.2 The authorised, issued, subscribed and paid-up share capital of TGML, the Transferor Company-2 as on 31st July, 2022 is as under:

Particulars	Amount (in Rs)
Authorised share capital	
7,60,00,000Equity shares of Rs. 10/- each	76,00,00,000
Total	**76,00,00,000**
Issued, subscribed and paid-up Share Capital	
60,00,000Equity shares of Rs. 10/- each	6,00,00,000
Total	**6,00,00,000**

There is no change in the authorised, issued, subscribed and paid up share capital of TGML after the aforesaid date. Further, as on the date of approval of Scheme by Board of Directors of the Companies, TGPL, the Transferee Company (along with its nominees) holds 100% of issued, subscribed and paid-up share capital of the Transferor Company-2.

3.3 The authorised, issued, subscribed and paid-up share capital of SWGL, the Transferor Company-3 as on 31st July 2022 is as under:

Particulars	Amount (in Rs)
Authorised share capital	
4,00,00,000Equity shares of Rs. 10 each	40,00,00,000
Total	**40,00,00,000**
Issued, subscribed and paid-up share capital	
3,82,25,030Equity shares of Rs. 10 each	38,22,50,300
Total	**38,22,50,300**

There is no change in the authorised, issued, subscribed and paid up share capital of SWGL after the aforesaid date. Further, as on the date of approval of Scheme by Board of Directors of the Companies, TGML, the Transferor Company-2 (along with its nominees) holds 100% of issued, subscribed and paid-up share capital of the Transferor Company-3.

3.4 The authorised, issued, subscribed and paid-up share capital of TGPL, the Transferee Company as on 31st July 2022 is as under:

Particulars	Amount (in Rs)
Authorised share capital	
210,00,00,000Equity shares of Rs. 10 each	2100,00,00,000
Total	**2100,00,00,000**
Issued, subscribed and paid-up share capital	
151,50,00,000Equity shares of Rs. 10 each	1515,00,00,000
Total	**1515,00,00,000**

There is no change in the authorised, issued, subscribed and paid up share capital of TGPL after the aforesaid date. Further, as on the date of approval of Scheme by Board of Directors of the Companies, 100% of issued, subscribed and paid-up share capital of the Transferee Company is held by Torrent Investments Private Limited, a parent holding company.

4. TRANSFER AND VESTING OF THE UNDERTAKINGS OF TRANSFEROR COMPANIES WITH THE TRANSFEREE COMPANY

4.1 Upon the Scheme being effective and subject to the provisions of this Scheme in relation to the mode of transfer and vesting, the Undertakings of the Transferor Companies shall, without any further act, instrument or deed, be and stand transferred to and vested in, and/ or be deemed to have been and stand transferred to and vested in, the Transferee Company, on and from the Appointed Date, so as to become, the estate, assets, rights, title, interest and authorities of the Transferee Company as part of and consequent upon the amalgamation pursuant to provisions of Sections 230 to 232 of the Act and all other applicable provisions of the Act and in compliance with the provisions of Section 2(1B) of the Income-tax Act, 1961;

4.2 Without prejudice to the aforesaid, all the immovable property (including but not limited to the land, buildings, offices, factories, sites, tenanc

rights related thereto, and other immovable property, including accretions and appurtenances), whether or not included in the books of the Transferor Companies, whether freehold or leasehold (including but not limited to any other document of title, rights, interest and easements in relation thereto, and any shares in cooperative housing societies associated with such immovable property) shall stand transferred to and be vested in the Transferee Company, as successor to the respective Transferor Company, without any act or deed to be done or executed by the Transferor Company, as the case may be and/ or the Transferee Company;

4.3 Upon the Scheme being effective, with respect to the assets forming part of the Undertakings of the Transferor Companies that are movable in nature or are otherwise capable of being transferred by manual delivery or endorsement and/ or delivery, the same shall stand transferred to and vested in, without any further act or execution of an instrument with the intent of vesting such assets in the Transferee Company as on the Appointed Date. The vesting pursuant to this sub-clause shall be deemed to have occurred by manual delivery or endorsement and/ or delivery, as appropriate to the property being vested, and the title to such property shall be deemed to have been transferred and vested accordingly. No additional stamp duty shall be payable on the transfer of such movable properties upon its transfer and vesting in the Transferee Company;

4.4 With respect to the assets of the Undertakings of the Transferor Companies, other than those referred to in the Clauses above, including sundry debtors, bank balances, receivables, bills, credits, promissory notes, debit notes, outstanding loans and advances, if any, recoverable in cash or in kind or for value to be received, bank balances and deposits, if any, with government, semi-government, local and other authorities and bodies or with any company or other person etc., shall, without any further act, instrument or deed, with effect from the Appointed Date, be transferred to and vested in and/ or be deemed to be transferred to and vested in the Transferee Company pursuant to the provisions of Sections 230 to 232 and all other applicable provisions of the Act. It is hereby clarified that all the investments made by the Transferor Company shall, pursuant to Sections 230 to 232 and all other applicable provisions of the Act, if any, and the provisions of this Scheme, without any further

act or deed, be transferred to and vested in or be deemed to have been transferred to and vested in the Transferee Company;

4.5 For the avoidance of doubt, it is clarified that upon the coming into effect of this Scheme, in accordance with the provisions of relevant laws, consents, permissions, licences, certificates, authorities (including for the operation of bank accounts), powers of attorney given by, issued to or executed in favour of any of the Transferor Companies, and the rights and benefits under the same, and all quality certifications and approvals, trademarks, brands, patents and domain names, copyrights, industrial designs, trade secrets and other intellectual property and all other interests relating to the goods or services being dealt with by the Transferor Companies shall be transferred to and vested in the Transferee Company without any further act or deed, and shall be appropriately mutated by the statutory authorities concerned therewith in favour of the Transferee Company. Upon the Scheme being effective, the benefit of all statutory and regulatory permissions, environmental approvals and consents, registrations or other licenses and consents shall vest in and become available to the Transferee Company, pursuant to the Scheme, on the same terms and conditions with effect from the Appointed Date. In so far as various incentives including export incentive, duty drawback, subsidies, rehabilitation schemes, special status, advance licenses and other benefits or privileges enjoyed, granted by any Government body, local authority or by any person or availed of by the Transferor Companies, are concerned, the same shall vest with and be available to the Transferee Company on the same terms and conditions;

4.6 Upon the Scheme being effective and subject to the other provisions of the Scheme, all contracts, deeds, bonds, agreements and other instruments of whatsoever nature to which any of the Transferor Companies is a party subsisting or having effect on or immediately before the Effective Date shall remain in full force and effect against or in favour of the Transferee Company and shall be binding on and be enforceable by and against the Transferee Company as fully and effectually as if the Transferee Company had at all times been a party thereto. Any inter-se contracts (including lease agreement) between the Transferor Companies and the Transferee Company shall stand cancelled and cease to operate upon the coming into effect of this Scheme;

4.7 Upon the Scheme being effective, in so far as the various incentives, tax exemption, deductions, benefits, subsidies, grants, special status, registrations and other benefits or privileges enjoyed including in respect of income-tax [including Minimum Alternative Tax (MAT)], excise (including Modvat / Cenvat), customs, VAT, sales tax, service tax, goods and service tax etc., granted by any Appropriate Authority, or availed of by the Transferor Companies are concerned, the same shall, without any further act or deed, vest with and be available to the Transferee Company on the same terms and conditions with effect from the Appointed Date;

4.8 Any tax holiday/deduction/exemption/carry forward losses (including loss as per books of accounts) and unabsorbed depreciation (including unabsorbed depreciation as per books of accounts) entitled to/enjoyed/availed by the Transferor Companies under the provisions of Income Tax Act, 1961 shall stand transferred to and vested in or deemed to be transferred to and vested in the Transferee Company and be entitled to /enjoyed/availed/utilized by the Transferee Company on and from the Appointed Date in the same manner as would have been entitled to /enjoyed/availed/utilized by the Transferee Company before implementation of this Scheme;

4.9 Upon the Scheme being effective and with effect from the Appointed Date, all income, expense, debts, liabilities, including, without limitation, all secured and unsecured debts, sundry creditors, contingent liabilities, duties, obligations and undertakings of the Transferor Companies, of every kind, nature and description whatsoever and howsoever arising, raised, incurred or utilized for its operations and activities, shall, pursuant to the sanction of this Scheme by the NCLT and under the provisions of Sections 230 to 232 and other applicable provisions, if any, of the Act, without any further act, instrument, deed, matter or thing being made, done or executed, be transferred to and vested in, or be deemed to have been transferred to and vested in, the Transferee Company and shall be assumed by the Transferee Company to the extent they are outstanding as on the Effective Date so as to become, as on and from the Appointed Date, the income, expenses, liabilities, debts, duties and obligations of the Transferee Company on the same terms and conditions as were applicable to the Transferor Companies, and the Transferee Company shall meet, discharge and

satisfy the liabilities and it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such liabilities have arisen in order to give effect to the provisions of this Clause;

4.10 All loans raised and utilized and all debts, liabilities, duties, and obligations incurred or undertaken by the Undertaking of the Transferor Companies on or after the Appointed Date and prior to the Effective Date shall be deemed to have been raised, used, incurred or undertaken for and on behalf of the Transferee Company and to the extent they are outstanding on the Effective Date, shall, upon the coming into effect of this Scheme and under the provisions of Sections 230 to 232 of the Act, without any further act, instrument or deed be and stand transferred to and vested in and be deemed to have been transferred to and vested in the Transferee Company and shall become the loans and liabilities, duties and obligations of the Transferee Company which shall meet, discharge and satisfy the same;

4.11 Upon the Scheme being effective, where any of the liabilities and obligations of the Transferor Companies subsisting as on the Appointed Date or which has arisen after the Appointed Date but prior to the Effective Date, have been discharged by the Transferor Company on or after the Appointed Date and prior to the Effective Date, such discharge shall be deemed to have been for and on behalf of the Transferee Company;

4.12 The vesting of the Undertaking of the Transferor Companies, as aforesaid, shall be subject to the Encumbrances, if any, over or in respect of any of the assets or any part thereof, provided however that such Encumbrances shall be confined only to the relevant assets of respective Transferor Company or part thereof on or over which they are subsisting on and vesting of such assets in Transferee Company and no such Encumbrances shall extend over or apply to any other asset(s) of Transferee Company. Any reference in any security documents or arrangements (to which Transferor Company is a party) related to any assets of Transferor Company shall be so construed to the end and intent that such security shall not extend, nor be deemed to extend, to any of the other asset(s) of the Transferee Company. Similarly, Transferee Company shall not be required to create any additional security o

assets vested under this Scheme for any loans, debentures, deposits, or other financial assistance already availed of/ to be availed of by it, and the Encumbrances in respect of such indebtedness of Transferee Company shall not extend or be deemed to extend or apply to the assets so vested;

4.13 If and to the extent there are investments, loans, deposits, or balances inter-se between the Transferor Companies and the Transferee Company, the obligations in respect thereof shall, on and from the Appointed Date, come to an end and suitable effect shall be given in the books of the Transferee Company upon the Scheme being Effective;

4.14 Upon the Scheme being effective, any tax liabilities under the Income-tax Act, 1961, Customs Act, 1962, Central Excise Act, 1944, value added tax laws, entertainment tax as applicable in any State in which the Transferor Company operates, Central Sales Tax Act, 1956, any other State Sales Tax laws/ Value Added Tax laws, or Service Tax laws, or Goods and Service Tax laws or Corporation Tax laws, or other applicable laws/ regulations dealing with taxes/ duties/ levies/cess (hereinafter in this Clause referred to as "**Tax Laws**") to the extent not provided for or covered by tax provision in the Transferor Company's accounts made as on the date immediately preceding the Appointed Date shall be transferred to the Transferee Company. Any surplus in the provision for taxation / duties/ levies account including advance tax, self assessment tax and tax deducted/collected at source as on the date immediately preceding the Appointed Date will also be transferred to the account of and belong to the Transferee Company;

4.15 Any amount including refund under the Tax Laws due to Transferor Companies consequent to the assessment proceedings or otherwise and which have not been received by the Transferor Companies as on the date immediately preceding the Appointed Date shall also belong to and be receivable by the Transferee Company upon the Scheme being effective;

4.16 Without prejudice to the above, all benefits, including the benefits under Tax Laws, to which the Transferor Companies are entitled to in terms of the applicable Tax Laws of the Union and State Governments, shall be

available to and vest in the Transferee Company upon the Scheme being effective;

4.17 Pursuant to this Scheme becoming effective, the Transferee Company shall be entitled to secure the record of the change in the legal ownership upon the vesting of the Undertakings of the Transferor Companies in accordance with the provisions of Sections 230 to 232 and all other applicable provisions, if any, of the Act. The Transferor Companies and the Transferee Company shall be jointly and severally authorized to execute any writings and/ or carry out any formalities or compliances or do any act, thing or deed in this regard;

4.18 Without prejudice to the other provisions of this Scheme and notwithstanding the fact that vesting of the Undertakings of the Transferor Companies occur by virtue of this Scheme, the Transferee Company may, at any time after the coming into effect of this Scheme, in accordance with the provisions hereof, if so required under any law or otherwise, take such actions and execute such deeds (including deeds of adherence), confirmations or other writings or tripartite arrangements with any party to any contract or arrangement to which any of the Transferor Companies is a party, as may be necessary in order to give formal effect to the provisions of this Scheme. The Transferee Company shall, under the provisions of this Scheme, be deemed to be authorized to execute any such writings on behalf of the Transferor Companies to carry out or perform all such formalities or compliances referred to above on the part of the Transferor Companies, as the case may be, to be carried out or performed; and

4.19 It is hereby clarified that if any assets (including but not limited to any estate, rights, title, interest in or authorities relating to such assets) in relation to the Transferor Companies cannot be transferred to the Transferee Company for any reason whatsoever, then directors of the Transferor Companies shall hold such assets in trust for the benefit of the Transferee Company till such period the transfer is effectively carried out in favour of the Transferee Company.

5. STAFF, WORKMEN & EMPLOYEES

5.1. Upon this Scheme coming into effect and with effect from the Effective Date, the Transferee Company undertakes to engage all the employees

of the Transferor Companies on the terms and conditions not less favourable than those on which they are engaged by the respective Transferor Company without any interruption of service as a result of the amalgamation of the Transferor Company with the Transferee Company. The Transferee Company also agrees that the services of all such employees with the Transferor Companies prior to the amalgamation of the Transferor Companies with the Transferee Company shall be taken into account for the purposes of all existing benefits to which the said employees may be eligible, including for the purpose of payment of any retrenchment compensation, gratuity and other retirement / terminal benefits and to this effect the accumulated balances, if any, standing to the credit of the employees in the existing provident fund, gratuity fund, superannuation fund and such other fund of which they are members will be transferred to such provident fund, gratuity fund, superannuation fund and such other fund nominated by the Transferee Company and/or such new provident fund, gratuity fund, superannuation fund, such other fund to be established and caused to be recognized by the Appropriate Authorities, by the Transferee Company, or to the government provident fund in relation to the employees of the Transferor Companies who are not eligible to become members of the provident fund maintained by the Transferee Company; and

5.2. Pending the transfer as aforesaid, the provident fund, gratuity fund, superannuation fund and such other dues of the employees would be continued to be deposited in the existing provident fund, gratuity fund, superannuation fund and such other fund respectively of the Transferor Companies.

6. LEGAL PROCEEDINGS

6.1. Upon the Scheme becoming effective, any suit, cause of actions, appeal or other legal, quasi-judicial, arbitral or other administrative proceedings of whatever nature ("**Proceedings**") by or against any of the Transferor Companies pending and/ or arising before the Effective Date shall not abate or be discontinued or be in any way prejudicially affected by reason of the transfer of the Undertakings of the Transferor Companies pursuant to this Scheme or by anything contained in this Scheme but the Proceedings shall be continued, prosecuted and enforced by or against the Transferee Company, as the case may be in the same manner

and to the same extent as they would or might have been continued, prosecuted and enforced by or against the respective Transferor Company as if the Scheme had not been made. On and from the Effective Date, the Transferee Company shall and may continue any Proceedings which were earlier in the name of the Transferor Company;

6.2. The Transferee Company undertakes to have, all respective legal or other Proceedings initiated by or against the Transferor Companies, transferred into its name and to have the same continued, prosecuted and enforced by or against the Transferee Company, as the case may be, to the exclusion of the Transferor Companies; and

6.3. The transfer and vesting of the Undertakings of the Transferor Companies under the Scheme and the continuation of the Proceedings by or against the Transferee Company under Clause 6.1 and 6.2 above, shall not affect any transaction or Proceedings already completed by the Transferor Companies on or after the Appointed Date and prior to this Scheme becoming effective to the end and intent that the Transferee Company accepts and adopts all acts, deeds and things done and executed by the Transferor Companies as acts, deeds and things being done and executed by and on behalf of the Transferee Company.

7. VALIDITY OF EXISTING RESOLUTIONS, ETC

Upon the coming into effect of this Scheme, the resolutions of the Transferor Companies, as are considered necessary by the Board of Directors of the Transferee Company and which are valid and subsisting on the Effective Date shall continue to be valid and subsisting and be considered as resolutions of the Transferee Company and if any such resolutions have any monetary limits approved under the provisions of the Act, or any other applicable statutory provisions, then said limits, as are considered necessary by the Board of Directors of the Transferee Company, shall be added to the limits, if any, under like resolutions passed by the Transferee Company and shall constitute the aggregate of the said limits in the Transferee Company.

8. CONTRACTS, DEEDS, ETC.

8.1. Notwithstanding anything to the contrary contained in the contract, deed, bond, agreement or any other instrument, but subject to the other

provisions of this Scheme, all contracts, deeds, bonds, agreements and other instruments, if any, of whatsoever nature and subsisting or having effect on the Effective Date and relating to the Transferor Companies shall continue in full force and effect against or in favour of the Transferee Company and may be enforced effectively by or against the Transferee Company as fully and effectually as if, instead of the Transferor Company, the Transferee Company had been a party thereto; and

8.2. The Transferee Company shall at any time after the coming into effect of this Scheme in accordance with the provisions hereof, if so required, under any law or otherwise, enter into, or issue or execute deeds, writings, confirmations, novations, declarations, or other documents with, or in favour of any party to any contract or arrangement to which any of the Transferor Companies is a party or any writings as may be necessary to be executed in order to give formal effect to the above provisions. Transferee Company shall, be deemed to be authorized to execute any such writings on behalf of Transferor Company and to carry out or perform all such formalities or compliances required for the purposes referred to above on the part of Transferor Companies.

9. PERMITS

With effect from the Appointed Date, all the permits held or availed of by, and all rights and benefits that have accrued to, the Transferor Companies, specifically including the City Gas Distrbution licences granted by Petroleum and Natural Gas Regulatory Board (PNGRB) pursuant to the provisions of Sections 230 to 232 of the Act, shall without any further act, instrument or deed, be transferred to, and vested in, or be deemed to have been transferred to, and vested in, and be available to, the Transferee Company so as to become, from the Effective Date, the permits, estates, assets, rights, title, interests and authorities of the Transferee Company and shall remain valid, effective and enforceable on the same terms and conditions to the extent permissible in Applicable Laws. Upon the Appointed Date and until the permits are transferred, vested, recorded, effected, and/ or perfected, in the record of the Appropriate Authority, in favour of the Transferee Company, the Transferee Company is authorized to carry on business in the name and style of the Transferor Company and under the relevant

license and/ or permit and/ or approval, as the case may be, and the Transferee Company shall keep a record and/ or account of such transactions.

10. TAX CREDITS

10.1. The Transferee Company will be successor of the Transferor Companies. Hence, it will be deemed that the benefit of any tax credits whether central, state or local, availed by the Transferor Company and the obligations if any for payment of tax on any assets of the Transferor Companies shall be deemed to have been availed by the Transferee Company or as the case may be deemed to be the obligations of Transferee Company. As the Scheme does not contemplate removal of any asset by the Transferee Company from the premises in which it is installed, no reversal of any tax credit needs to be made;

10.2. With effect from the Appointed Date and upon the Scheme becoming effective, all taxes, duties, cess payable/ receivable by the Transferor Companies including all or any refunds/ credit including MAT/ claims relating thereto shall be treated as the asset/ liability or refunds/ credit, including MAT/ claims as the case may be, of the Transferee Company. The Transferee Company shall be entitled to get credit/ claim refund of any tax paid and/ or tax deduction at source or tax collected at source on or after the Appointed Date by the Transferor Companies; and

10.3. In order to give effect of this Scheme, the Transferor Companies and the Transferee Company shall be entitled to, amongst others, file/ revise its income tax returns, TDS/ TCS returns, wealth tax returns, service tax, excise duty, sales tax, value added tax, goods and services tax, entry tax, cess, professional tax or any other statutory returns, if required, claim credit for advance tax paid, tax deducted at source, tax collected at source, claim for sum prescribed under Section 43B of the Income-tax Act, 1961 on payment basis, claim for deduction of provisions written back by the Transferee Company previously disallowed in the hands of Transferor Company under the Income-tax Act, 1961, credit of tax under Section 115JB read with Section 115JAA of the Income-tax Act, 1961, credit of foreign taxes paid/ withheld etc., if any, as may be required consequent to implementation of this Scheme, even if the prescribed time limits for filing or revising such returns have lapsed without incurring any liability on account of interest, penalty, late fee or any

other sum. Transferee Company shall have the right to claim refunds, tax credits, set-offs and/ or adjustments relating to its income or transactions entered into by it, by virtue of this Scheme with effect from Appointed Date. The taxes or duties paid by, for, or on behalf of the Transferor Company relating to the period on or after Appointed Date shall be deemed to be the taxes or duties paid by the Transferee Company, and accordingly the Transferee Company shall be entitled to claim credit or refund for such taxes or duties.

11. SAVING OF CONCLUDED TRANSACTIONS

Subject to the terms of this Scheme, the transfer of the Undertakings, licences, permits, registrations, memberships and approvals as specified under this Scheme and the continuance of Proceedings by or against the Transferee Company under Clause 6 above shall not affect any transaction or Proceedings already concluded by the Transferor Companies on or before the Appointed Date, or after the Appointed Date till the Effective Date, to the end and intent that the Transferee Company accepts and adopts all acts, deeds and things made, done and executed by the Transferor Companies as acts, deeds and things made, done and executed by or on behalf of the Transferee Company.

12. CONSIDERATION

12.1 Upon coming into effect of this Scheme, the Equity shares held by the Transferee Company directly or indirectly, in all the Transferor Companies shall stand automatically cancelled with effect from the Effective Date without any further application, act or deed and no consideration shall be issued against the same.

12.2 The entire issued, subscribed and paid up Equity share capital of TGPNL and TGML, the Transferor Companies is held by TGPL directly. Similarly, the entire share capital of SWGL, is held by TGML. In other words, the TGPNL, TGML and SWGL are the wholly owned subsidiary companies, of the Transferee Company, either directly or indirectly. Accordingly, pursuant to this amalgamation, no shares of the Transferee Company shall be issued or allotted, or payment made in cash whatsoever in respect of the shares held by TGPL in all the Transferor Companies. Upon the Scheme becoming effective, the entire equity preference share capital of TGPNL, TGML and SWGL held by TGPL alongwith the nominee shareholders shall stand cancelled and extinguished without any further act or deed by the Transfer

Company. In view of the same, computing the valuation is not required.

12.3 M/s. SSPA & Co., Chartered Accountants and Independent Registered valuers, having IBBI Registration No. IBBI/RV/06/2018/10072has issued a report on the valuation of shares and have confirmed that the Transferor Companies being Wholly Owned Subsidiaries of the Transferee Company, no shares are required to be issued towards consideration. The said Valuation Report have been duly considered by the Board of Directors of the Transferee Company and the Transferor Companies.

13. ACCOUNTING TREATMENT IN THE BOOKS OF TRANSFEREE COMPANY

Notwithstanding anything to the contrary contained herein, the Transferee Company shall give effect to the amalgamation of the transferor companies in its books of account in accordance with Appendix C (Business combinations of entities under common control) of Ind AS 103- Business Combinations prescribed under the Companies (India Accounting Standards) Rules, 2015 as notified under section 133 of Companies Act, 2013 and the relevant clarifications issued by the Institute of Chartered Accountants of India.

14. DISSOLUTION OF THE TRANSFEROR COMPANIES

On and from the Effective Date, the Transferor Companies shall stand dissolved without being wound up.

15. OPERATIONS, ACTIVITIES AND PROPERTIES IN TRUST AND CONDUCT OF OPERATIONS FOR TRANSFEREE COMPANY

Unless otherwise stated herein under, with effect from the Appointed Date and up to and including the Effective Date:

15.1. The Transferor Companies shall be deemed to have been carrying on and shall carry on its operations and activities and shall be deemed to have held and stood possessed of and shall hold and stand possessed of the Undertaking of the Transferor Companies for and on account of, and in trust for the Transferee Company and shall account for the same to the Transferee Company. The Transferor Companies hereby undertake to hold the said Undertakings with utmost prudence until the Effective Date;

15.2. The Transferor Companies shall carry on the business and activities, with reasonable diligence and business prudence;

15.3. All the surplus, income, taxes (including MAT credit, tax paid and tax deducted/ collected at source) or any costs, charges, expenditure, accumulated losses accruing to the Transferor Companies or expenditure or losses arising or incurred or suffered by the Transferor Companies shall for all purpose be treated and be deemed to be and accrue as the surplus, income, taxes (including MAT credit, tax paid and tax deducted/ collected at source) or any costs, charges, expenditure or accumulated losses of the Transferee Company, as the case may be;

15.4. The Transferor Companies shall not vary the terms and conditions of employment of any of their employees, without the prior consent in writing of any of the persons authorized by the Board of Directors of the Transferee Company, except in the ordinary course of business; and

15.5. The Transferee Company shall be entitled, pending sanction of the Scheme, to apply to the concerned authorities and all other agencies, departments and authorities concerned as are necessary under any law for such consents, approvals, and sanctions which the Transferee Company may require to carry on the operations of the Transferor Companies and to give effect to the Scheme.

16. CONSOLIDATION OF AUTHORISED SHARE CAPITAL

16.1. Upon this Scheme becoming effective, the authorised share capital of the Transferor Companies amounting to INR 316,00,00,000 (Rupees Three Hundred and Sixteen Crores Only) divided into , as mentioned in Clause 3.1 to 3.3 above, shall be added to the authorised share capital of the Transferee Company, as on the Effective Date, without any further act or deed and without any further payment of any stamp duty or registration fees. For this purpose, the stamp duty and fees already paid on the authorised share capital of the Transferor Companies shall be utilised and applied to the increased authorised share capital of the Transferee Company. The Transferee company may be required to pay only the difference between the current duty payable on the increased capital and the amounts already paid by the Transferor Companies. The authorised share capital of the Transferee Company will thus be

increased to that effect by virtue of the Scheme becoming effective and no separate procedure shall be required to be followed under the Act;

16.2. Consequent upon the amalgamation, the authorised share capital of the Transferee Company will be amended / altered / modified as under:

Authorised Share Capital	Amount (in Rs.)
241,60,00,000 Shares of Rs.10/- Each divided as under :	
i. 217,44,00,000 Equity Shares of Rs. 10/- each	2174,40,00,000
ii. 24,16,00,000 Preference Shares of Rs. 10/- each	241,60,00,000
Total	**2416,00,00,000**

16.3. Consequently, Clause V of the Memorandum of Association of the Transferee Company shall, without any act, instrument, or deed, be and stand altered, modified, and amended pursuant to applicable provisions of the Act. The revised Capital Clause of the Transferee Company shall be as under:

"The Authorised Share Capital of the Company is Rs. 2416,00,00,000 (Rupees Two Thousand Four Hundred and Sixteen Crore only) divided into 217,44,00,000 (Two Hundred and Seventeen Crore Forty-four Lacs) Equity Shares of Rs. 10/- (Rupees Ten) each and 24,16,00,000 Preference Shares of Rs. 10/- (Rupees Ten) each."

16.4. It is clarified that the approval of the shareholders of the Transferee Company to the Scheme shall be deemed to be their consent/ approval also to the consequential alteration of the Memorandum of Association of the Transferee Company under Sections 13, 61 and 64 of the Act and other Applicable Laws and the Transferee Company shall not be required to seek separate consent/ approval of its shareholders for such alteration of the Memorandum of Association of the Transferee Company.

17. APPLICATIONS TO NCLT OR OTHER APPROPRIATE AUTHORITIES

17.1. The Transferor Companies and the Transferee Company shall, with all reasonable dispatch, make necessary application under Sections 230 to 232 and/ or other applicable provisions of the Act to the NCLT, Ahmedabad Bench, for seeking order for dispensing with or convening

holding and conducting of, meeting of the shareholders and/or creditors of the Transferor Companies and the Transferee Company, as may be directed by NCLT for sanction of this Scheme and all matters ancillary or incidental thereto; and

17.2. On the Scheme being approved by the requisite majorities of the shareholders and/ or creditors of the Transferor Companies and the Transferee Company, whether at meeting or otherwise, as prescribed under the law and/ or as directed by the NCLT or such other Appropriate Authority, the Transferor Companies and the Transferee Company shall, with all reasonable dispatch, apply to the NCLT for sanctioning of the Scheme under Sections 230 to 232 of the Act, and for such other order or orders, as the NCLT may deem fit for carrying this Scheme into effect.

18. SCHEME CONDITIONAL ON APPROVALS / SANCTIONS

18.1 The Scheme is and shall be conditional upon and subject to the followings:

a) Approval be granted by the Petroleum and Natural Gas Regulatory Board (PNGRB), being the Sectoral Regulator for the business activities of all the companies. For which, intimation has already been sent to PNGRB along with in-principle approvals by the Board of Directors of Transferor and Transferee Companies vide joint letter dated 26th July 2022.

b) The Scheme being approved by requisite majority in numbers and value of such classes of persons including the shareholders and/or creditors of the Transferor Companies and the Transferee Company, as required under the Act or as may be directed by the NCLT and/ or any other competent authority as may be applicable;

c) The requisite consent, approval or permission of any other statutory or regulatory authority, which by law may be necessary for the implementation of this Scheme;

d) The Scheme being sanctioned by the NCLT under Sections 230 to 232 and all other applicable provisions of the Act and/ or any Appropriate Authority; and

e) Certified Copies of the Order of the NCLT or such other competent authority, as may be applicable, sanctioning this Scheme being filed with the Registrar of Companies having jurisdiction over the Companies.

19 EFFECT OF NON-RECEIPT OF PERMITS AND MATTERS RELATING TO REVOCATION/ WITHDRAWAL OF THIS SCHEME

19.1 The Transferor Companies and the Transferee Company acting through their respective Boards shall each be at liberty to withdraw from this Scheme: (a) in case any condition or alteration imposed by any Appropriate Authority is unacceptable to any of them; or (b) they are of the view that coming into effect of this Scheme could have adverse implications on the respective Companies;

19.2 In the event of revocation/ withdrawal under Clause 19.1, no rights and liabilities whatsoever shall accrue to or be incurred inter se the Transferor Companies and the Transferee Company or their respective shareholders or creditors or employees or any other person, save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any right, liability or obligation which has arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or in accordance with the Applicable Law and in such case, each Company shall bear its own costs, unless otherwise mutually agreed; and

19.3 If any Clause of this Scheme is held to be invalid, ruled illegal by any Court of competent jurisdiction, or unenforceable under present or future laws, then it is the intention of the Companies that such Clause shall be severable from the remainder of this Scheme, and this Scheme shall not be affected thereby, unless the deletion of such Clause shall cause this Scheme to become materially adverse to any party, in which case the Board of Directors of the Companies involved in the Scheme shall attempt to bring about a modification in this Scheme, as will best preserve for the parties the benefits, and obligations of this Scheme, including, but not limited to, such Clause.

20 MODIFICATIONS/ AMENDMENTS TO THE SCHEME

20.1 The Boards of the Transferor Companies and Transferee Company acting themselves or through authorized persons, may consent jointly but not individually, on behalf of all persons concerned, to any modifications or amendments of this Scheme at any time and for any reason whatsoever, or to any conditions or limitations that the NCLT or any other Appropriate Authority may deem fit to direct or impose or which may otherwise be considered necessary, desirable or appropriate by the

Board of the Transferor Companies and the Transferee Company and solve all difficulties that may arise for carrying out this Scheme and do all acts, deeds and things necessary for putting this Scheme into effect; and

20.2 For the purpose of giving effect to this Scheme or to any modification thereof, the Boards of the Transferor Companies and the Transferee Company acting themselves or through authorized persons may jointly but not individually, give and are jointly authorized to give such directions including directions for settling any question of doubt or difficulty that may arise and such determination or directions, as the case may be, shall be binding on all parties, in the same manner as if the same were specifically incorporated in this Scheme. It is clarified that individual companies acting themselves or through authorized persons may individually approach the NCLT or any other Appropriate Authority to seek clarifications for implementation of the Scheme.

21 GENERAL TERMS AND CLAUSES

21.1 Upon the Scheme becoming effective, the Transferor Companies and Transferee Company shall have the right to revise their respective financial statements and returns along with prescribed forms, filings, and annexures under the Tax Laws and/ or Applicable Laws to give effect to the provisions of the Scheme. In order to give effect of this Scheme, the Transferor Companies and the Transferee Company shall be entitled to, amongst others, file and/ or revise its income tax returns, TDS/ TCS returns, wealth tax returns, service tax, excise duty, sales tax, value added tax, goods and services tax, entry tax, cess, professional tax or any other statutory returns, if required, claim credit for tax paid, tax deducted at source, tax collected at source, claim for sum prescribed under Section 43B of the Income-tax Act, 1961 on payment basis, claim for deduction of provisions written back by Transferee Company previously disallowed in the hands of Transferor Company under the Income-tax Act, 1961, credit of tax under Section 115JB read with Section 115JAA of the Income-tax Act, 1961, credit of foreign taxes paid/ withheld etc. if any, as may be required consequent to implementation of this Scheme, even if the prescribed time limits for filing or revising such returns have lapsed without incurring any liability on account of interest, penalty, late fee or any other sum. Such returns shall be filed based on reconstructed accounts drawn up with effect from the

TORRENT GAS PRIVATE LIMITED
Torrent Gas Pune Limited
TORRENT GAS PRIVATE LIMITED
TORRENT GAS PUNE LIMITED
TORRENT GAS MORADABAD LIMITED
SANWARIYA
TORRENT GAS MORADABAD LIMITED
SANWARIYA GAS LIMITED

Appointed Date and any tax including MAT shall be computed accordingly. Transferee Company shall have the right to claim refunds, tax credits, setoffs and/ or adjustments relating to its income or transactions entered into by it, by virtue of this Scheme with effect from Appointed Date. The taxes or duties paid by, for, or on behalf of the Transferor Company relating to the period on or after Appointed Date shall be deemed to be the taxes or duties paid by the Transferee Company, and accordingly the Transferee Company shall be entitled to claim credit or refund for such taxes or duties;

21.2 Upon this Scheme becoming effective, the Transferee Company is expressly permitted to prepare and/or revise their financial statements and returns along with prescribed forms, filings and annexures under the Income-tax Act, 1961 (including for minimum alternate tax purposes and tax benefits), service tax law, GST law and other tax laws, and to claim refunds and/or credits for taxes paid (including minimum alternate tax), and to claim tax benefits (including brought forward book losses) under the Income-tax Act, 1961, etc., and for matters incidental thereto, if required to give effect to the provisions of this Scheme. The order of the jurisdictional NCLT sanctioning the Scheme shall be deemed to be an order of the Competent Authority permitting the Transferee Company to prepare and/or revise its financial statements and books of accounts and no further act shall be required to be undertaken by the Transferee Company;

21.3 It is hereby clarified that submission of the Scheme to the NCLT and to Appropriate Authorities for their respective approvals is without prejudice to all rights, interests, titles, or defences that the Transferor Companies and the Transferee Company may have under or pursuant to all Applicable Law; and

21.4 On the approval of this Scheme by the shareholders of the Transferor Companies and the Transferee Company and such other classes of persons of the said Companies, if any, such shareholders, and classes of persons shall also be deemed to have resolved and accorded all relevant consents under the Act and Applicable Law or otherwise to the same extent applicable in relation to the amalgamation, related matters and this Scheme itself.

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22 COSTS, CHARGES AND EXPENSES

All costs, charges and expenses including stamp duty and registration fee of any deed, document, instrument or NCLT's order including this Scheme or in relation to or in connection with negotiations leading up to the Scheme and of carrying out and implementing the terms and provisions of this Scheme and incidental to the completion of arrangement in pursuance of this Scheme shall be borne and paid by the Transferee Company.

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Annexure B

ANNEXURE – 1

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List of Assets of Torrent Gas Pune Limited as on 31st March 2023 to be transferred to Torrent Gas Private Limited, pursuant to the scheme sanctioned by the Hon'ble National Company Law Tribunal, Bench at Ahmedabad.

Schedule

Part I

Particulars of Freehold Properties

(i) Land:

#	Address	Area	Locations
1	Gate No. 49 Hissa No. 2, Village-Mauje Jategaon Khurd, Taluka-Shirur, Pincode: 412208, District-Pune in the state of Maharashtra.	6300 Sq. Meters	CGS - Jategaon
2	Gate no. 264, village – Mauje Andhalgaon, Taluka- Shirur, Pincode:412211, District- Pune in the state of Maharashtra.	8000 Sq. Meters	CGS – Nhavare
3	Gat No. 65 Village Vangali, Taluka Indapur, Pincode: 413106, District-Pune in the state of Maharashtra.	5355 Sq. Meters	Indapur - COCO

(ii) Building:

#	Address	Area	Locations
1	Gate No. 49 Hissa No. 2, Village-Mauje Jategaon Khurd, Taluka-Shirur, Pincode: 412208, District-Pune in the state of Maharashtra.	215.76 Sq. Meters	CGS - Jategaon

TORRENT GAS PUNE LIMITED

2	Gate no. 264, village – Mauje Andhalgaon, Taluka- Shirur, Pincode:412211, District- Pune in the state of Maharashtra.	- 212.79 Sq. Meters	CGS – Nhavare

(iii) Plant and Machinery: **(if any, imbedded or attached to earth)**

Steel pipeline network of approx.1365 Inch Kilometer and MDPE pipeline network of approx.343 Kilometer in the Geographical area of Pune district except Pune City

Part II

Particulars of Leasehold Properties

(i) Land:

#	Address	Area	Locations
1	Plot No. A-23, Talegaon Industrial Area, Village – Akurdi, Taluka- Maval, Pincode- 410506, District- Pune in the state of Maharashtra	3500 Sq. Meters	CGS – Talegaon MIDC
2	Plot No. B-34, Ranjangaon Industrial Area, Village- Karegaon, Taluka - Shirur, Pincode: 412220, District- Pune in the state of Maharashtra	6300 Sq. Meters	CGS - Ranjangaon
3	Dattatreya Bendbhar Gat No.445, Village Pimple Jagtap (Chauphula), Chauphula-Kendur Road, Tal.Shirur, Dist-Pune, Maharashtra-412208	1840 Sq. Meters	Warehouse land
4	Gahina Baban Narwade Gat No. 1101, backside of Sai Ganesh Petroleum & CNG Station, Village – Ranjangaon Ganpati, Pune – Ahmednagar Highway, Taluka Shirur, District Pune, Maharashtra – 412209	1800 Sq. Meters.	Warehouse Land

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5	Siddhesh Filling Station Gat No 1331/1, Post Kandali, Taluka Junnar, Pune Nashik Highway, Pune, Maharashtra 412412	2200 Sq. Meters.	CNG Station Land
6	Baramati Krushi Utpanna Bajar Sameeti-APMC Plot No 04, Gat No. 23, Pimpri Jalochi Road, Taluka Baramati, Pune, Maharashtra 413102	1648 Sq. Meters.	CNG Station Land
7	SK Enterprises Plot No. 18/2, at Shewalwadi, Manchar, Pune Nashik Road, NH-60, Pune, Maharashtra - 410503	1991.01 Sq. Meters.	CNG Station Land
8	Akash Borkar NarayanGaon, Nashik Pune Highway, Taluka-Junnar,District-Pune, Maharashtra – 410504	2241.36 Sq. Meters.	CNG Station Land
9	Chandere CNG Station-(Namdev Genuji Chandere) S No. 83/A, Mouje Sus, Taluka Mulshi, District Pune, Maharashtra - 411021	1400.70 Sq. Meters.	CNG Station Land
10	Abhay CNG Station New S No.163, Fursungi, Pune, Maharashtra – 412308	1303.56 Sq. Meters.	CNG Station Land
11	Ashwashakti Cargo Carrier Plot No.A58,MIDC,Baramati, Maharashtra-413133	600 Sq. Meters.	DCS Land
12	Heerkani Real Estate Pvt Ltd P-100 Village Vanjarwadi MIDC Taluka Baramati, Pune, Maharashtra - 413133	1000 Sq. Meters.	CNG Station Land
13	Ramchandra Damodar Kad & Anant Shankar Kad Plot No. 357/54, Waghjainagar, Kharabwadi, Chakan, Tal.Khed, Dist. Pune	4094.25 Sq. Meters. (Shed 185.81 Sq. Mtr.)	Warehouse land & covered shed

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14	Hemant J Bhongle Sr. No. 611 Hissa No. 2/3, Village – Saswad, Taluka Purandhar, Dist. Pune, Maharashtra 412301	100 Sq. Meters	DCS Land
15	Maharashtra State Road Transport Corporation (MSRTC), Shirur Taluka, Pune 412210	588.85 Sq. Meters	Mother Station Land

(ii) Building:

#	Address	Area	Locations
1	Plot No. A-23, Talegaon Industrial Area, Village – Akurdi, Taluka- Maval, Pincode- 410506, District- Pune	130 Sq. Meters	CGS – Talegaon MIDC
2	Ari Healthcare Private Limited Bearing No.106, 1st Floor, WTC Tower 1, Kharadi, Pune 411014	385.55 Sq. Meters	Office
3	Office No.14, Spandan Residency, Near Popular Nagar, S No 117/1, Pin-411052, Pune	88.26 Sq. Meters.	Office
4	Madhukar Shirsat Office No.01, Madhuraj Complex, Baramati Bhigwan Road,Rui (near Rui Pati), Baramati-413133, Pune	91.04 Sq. Meters.	Office
5	Torrent Power Limited 3rd Floor, C Block, 600, Samanvay, Tapovan Society, Ambabadi, AHMEDABAD - 380015	2369 Sq. Meters.	Office

(iii)Plant and Machinery: **(if any, imbedded or attached to earth)**

Nil

Part III

A. Particulars of Investment in Shares & Securities:

Investment in Mutual Fund- Rs. 2803.21 Lacs

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B. Particulars of Bank Accounts:

Sr. No.	Bank & Branch	Type of Account	Account No.
1	AXIS BANK LIMITED AHMEDABAD MAIN BRANCH, TRISHUL, OPPOSITE SAMARTHESHWAR LAW GARDEN, ELLISBRIDGE, AHMEDABAD - 380 006	Current Account	919020075410008
2	INDUSIND BANK LIMITED AHMEDABAD BRANCH, WORLD BUSINESS HOUSE, NR.PARIMAL GARDEN, ELLISBRIDGE, AHMEDABAD	Current Account	201002452600
3	INDIAN BANK (E ALLAHABAD BANK), ACME CENTRE, NR. NAVRANGPURA RAILWAY CROSSING, NAVRANGPURA, AHMEDABAD – 380009	Current Account	50522043518
4	AXIS BANK LIMITED AHMEDABAD MAIN BRANCH, TRISHUL, OPPOSITE SAMARTHESHWAR LAW GARDEN, ELLISBRIDGE, AHMEDABAD - 380 006	FIXED DEPOSIT	921040068963132
5	AXIS BANK LIMITED AHMEDABAD MAIN BRANCH, TRISHUL, OPPOSITE SAMARTHESHWAR LAW GARDEN, ELLISBRIDGE, AHMEDABAD - 380 006	FIXED DEPOSIT	921040068963718
6	AXIS BANK LIMITED AHMEDABAD MAIN BRANCH, TRISHUL, OPPOSITE SAMARTHESHWAR LAW GARDEN, ELLISBRIDGE, AHMEDABAD - 380 006	FIXED DEPOSIT	923040051317942

TORRENT GAS PUNE LIMITED

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7	INDUSIND BANK LIMITED AHMEDABAD BRANCH, WORLD BUSINESS HOUSE, NR.PARIMAL GARDEN, ELLISBRIDGE, AHMEDABAD	FIXED DEPOSIT	300722287520
8	INDUSIND BANK LIMITED AHMEDABAD BRANCH, WORLD BUSINESS HOUSE, NR.PARIMAL GARDEN, ELLISBRIDGE, AHMEDABAD	FIXED DEPOSIT	300736869149

C. Registration with Various Authorities under respective laws, Bodies etc. :

Name of Authority	Nature of registration	Registration Number
INCOME TAX DEPARTMENT	PAN	AAJCM6475B
	TAN	PNEM29896G
SALES TAX DEPARTMENT		27251145914C 27251145914V
SERVICE TAX DEPARTMENT	S.T.REG.NO.	27AAJCM6475B1ZC
	INPUT SERVICE DISTRIBUTOR	
	REG.NO.	
EXCISE & CUSTOMS	DGFT IE CODE NO.	IEC Number: 0515075132
	BIN No.	
EXCISE REGISTRATION NO.		AAJCM6475BEM001
PF REGISTRATION NO.		PUPUN1732283000
ESI REGISTRATION		33000617590000906
FACTORY LICENCE NO.		Talegaon CGS 122103520200000 Nhavare CGS 112104730000564 Jategaon CGS 112104730000564

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PROFESSIONAL TAX REGISTRATION NO.		27251145914
LIC GROUP GRATUITY POLICY NO.		709003839
CONTRACTUAL LABOUR REGISTRATION NO.		CLRA/RLCPUNE/2022/R-2

VEHICLES: (IF ANY)

Description	Registration number
Car - Mercedes Benz	MH12RT4326

For TORRENT GAS PUNE LIMITED

UTKARSH BHATT
DIRECTOR
DIN : 08577842

TORRENT GAS PUNE LIMITED

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List of Assets of Torrent Gas Moradabad Limited as on 31st March 2023 to be transferred to Torrent Gas Private Limited, pursuant to the scheme sanctioned by the Hon'ble National Company Law Tribunal, Bench at Ahmedabad.

Schedule

Part I

Particulars of Freehold Properties

(i) Land:

#	Address	Area in Sq. Meters	Locations
1	Khasra No. 254, 256, 253, 252-B & 255 Vill. Dhannupura, 14 KM milestone, NH-24, Delhi Road district Moradabad	19340 Sq. Meters	CGS & CNG Station - Dhannupura

(ii) Building:

#	Address	Area	Locations
1	Khasra No. 254, 256, 253, 252-B & 255 Vill. Dhannupura, 14 KM milestone, NH-24, Delhi Road district Moradabad	3507.58 Sq. Meter	CGS & CNG Station - Dhannupura

(iii) Plant and Machinery: **(if any, imbedded or attached to earth)**

Steel pipeline network of approx.379 Inch Kilometer and MDPE pipeline network of approx.705 Kilometer in the Geographical area of Moradabad City

TORRENT GAS MORADABAD LIMITED

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Part II

Particulars of Leasehold Properties

(i) Land:

#	Address	Area	Locations
1	Sameena Khatoon Khasara,no.163,village menather fazalpur, Moradabad. Uttar pradesh.	971.33 Sq Meter	Land CNG station

(ii) Building:

#	Address	Area	Locations
1	Torrent Power Limited 3rd Floor, C Block, 600, Samanvay, Tapovan Society, Ambawadi, AHMEDABAD - 380015	2368 Sq Ft	Office
2	Vision Associate Office No.15/05/24 1st Floor, Pridel Square, Majholi Chawk, Delhi Road, Moradabad	2500 Sq Ft	Office

(iii)Plant and Machinery: **(if any, imbedded or attached to earth)**

Nil

Part III

A. Particulars of Investment in Shares & Securities:

1	Investment in Mutual Fund- Rs. 400.27 Lacs
2	Investment in Sanwariya Gas Limited Rs. 11846.20 Lacs

TORRENT GAS MORADABAD LIMITED

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B. Particulars of Bank Accounts:

Sr. No.	Bank & Branch	Type of Account	Account No.
1	**AXIS BANK LIMITED** AHMEDABAD MAIN BRANCH	CURRENT ACCOUNT	920020034605100
2	**PUNJAB NATIONAL BANK,** LODHIPUR RAJPUT BRANCH, MORADABAD	CURRENT ACCOUNT	9963002100000167
3	**INDUSIND BANK LIMITED** AHMEDABAD BRANCH	CURRENT ACCOUNT	201003482675
4	**AXIS BANK LIMITED** AHMEDABAD MAIN BRANCH	FIXED DEPOSIT	921040065399394
5	**AXIS BANK LIMITED** AHMEDABAD MAIN BRANCH	FIXED DEPOSIT	922040057706761
6	**HDFC BANK LIMITED** MITHAKHALI, AHMEDABAD	FIXED DEPOSIT	3034640000100

C. Registration with Various Authorities under respective laws, Bodies etc. :

Name of Authority	Nature of Registration	Registration Number
INCOME TAX DEPARTMENT	PAN	AAJCS2806G
	TAN	DELS28429C
SALES TAX DEPARTMENT	TIN	09659202261
GOODS SALES & SERVICE	GST REGN NO	09AAJCS2806G1ZB
SERVICE TAX DEPARTMENT	S.T.REG.NO.	Not applicable
	INPUT SERVICE DISTRIBUTOR	
	REG.NO.	Not available
EXCISE & CUSTOMS	DGFT IE CODE NO.	
	BIN No.	
EXCISE REGISTRATION NO.		AAJCS2806GXM001
PF REGISTRATION NO.		DL/CPM/0031323/000

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ESI REGISTRATION		30111161400021021
FACTORY LICENCE NO.		UPFA4000090
CONTRACTUAL LABOUR REGISTRATION NO.		701003999

VEHICLES: (IF ANY)

Description	Registration number
Light Commercial Vehicles – 4 Nos.	UP21BN 9276, UP21BN 9278, UP21BN 5978, UP21BN 5979
CAR – 3 nos.	DLICP 5193, DL2CAQ 5644, UP21CN,2640

For TORRENT GAS MORADABAD LIMITED

TORRENT GAS MORADABAD LIMITED

NARESH PODDAR
DIRECTOR
DIN : 06915370

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List of Assets of Sanwariya Gas Limited as on 31st March 2023 to be transferred to Torrent Gas Private Limited, pursuant to the scheme sanctioned by the Hon'ble National Company Law Tribunal, Bench at Ahmedabad.

Schedule

Part I

Particulars of Freehold Properties

(i) Land:

#	Address	Area	Locations
1	Khasra no. 129 Ka 129 Kha & 132 Moza Kota, Near K.D. Dental College, N.H.-2 (Delhi to Agra), The & Distt Mathura	3846 Sq. Meters	Moza Kota, Distt Mathura
2	Khasra No. 1028 Moza Chhata First, Chhata Tarauli Link Road Chhata, Teh Chhata & Distt. Mathura	3253 Sq. Meter	Moza Chhata First, Teh Chhata & Distt. Mathura
3	Khasra No. 1711, Moza Baad, Delhi Agra (N.H.-2), Near SBI Bank, The. & Distt.- Mathura	2345 Sq. Meters	Moza Baad, The. & Distt.- Mathura

(ii) Building:

#	Address	Area	Locations
1	Khasra No. 1028 Moza Chhata First, Chhata Tarauli Link Road Chhata, Teh Chhata & Distt. Mathura	45.65 Sq. Meter	Moza Chhata First, Teh Chhata & Distt. Mathura

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2	Khasra No. 1711, Moza Baad, Delhi Agra (N.H.-2), Near SBI Bank, The. & Distt.- Mathura	89.27 Sq. Meters	Moza Baad, The. & Distt.- Mathura
3	Khatauni No. 80, Village Jaisinghpura Bangar, Tehsil Sadar, Mathura	350 Sq. Meters approx.	Village Jaisinghpura Bangar, Tehsil Sadar, Mathura

(iii) Plant and Machinery: **(if any, imbedded or attached to earth)**

Steel pipeline network of approx. 339 Inch Kilometer and MDPE pipeline network of approx. 267 Kilometer in the Geographical area of Moradabad City

Part II

Particulars of Leasehold Properties

(i) Land:

#	Address	Area in Aq. Meters	Locations
1	Tapesh Gautam Village Satoha Asgarpur,Govardhan Road, Mathura.	1400 Sq Meters	Land for CNG Station
2	Mathura Natural Gas Private Limited Jaisinghpura Bangar, Pargana Mathura,Tehsil Sadar.	3376 Sq Meters	Land for CNG Station

(ii) Building:

#	Address	Area	Locations
1	Uma Motors Private Limited 3rd Floor, Sapphire complex, above nexa showroom,NH19 Maholi. Mathura	3000 Sq.Ft	Office

SANWARIYA GAS LIMITED

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(iii)Plant and Machinery: **(if any, imbedded or attached to earth)**

Nil

Part III

A. Particulars of Investment in Shares & Securities:

1	Investment in Mutual Fund- Rs. 1106.92 Lacs

B. Particulars of Bank Accounts:

Sr. No.	Bank & Branch	Type of Account	Account No.
1.	**STATE BANK OF INDIA** NOIDA BRANCH	CURRENT ACCOUNT	62145192128
2.	**PUNJAB NATIONAL BANK** NOIDA BRANCH	CURRENT ACCOUNT	4127002100050622
3.	**PUNJAB NATIONAL BANK** NOIDA BRANCH	CURRENT ACCOUNT	2164002100010296
4.	**UNION BANK OF INDIA** NOIDA BRANCH	CURRENT ACCOUNT	497801010000138
5.	**AXIS BANK NOIDA BRANCH**	CURRENT ACCOUNT	916020018834215
6.	**AXIS BANK LIMITED** NOIDA BRANCH	Fixed Deposit	918040072663350
7.	**AXIS BANK LIMITED** NOIDA BRANCH	Fixed Deposit	918040056164855
8.	**AXIS BANK LIMITED** NOIDA BRANCH	Fixed Deposit	921040055766584
9.	**AXIS BANK LIMITED** NOIDA B UP48823SU RANCH	Fixed Deposit	921040080275037
10.	**AXIS BANK LIMITED** NOIDA BRANCH	Fixed Deposit	921040080264394
11.	**AXIS BANK LIMITED** NOIDA BRANCH	Fixed Deposit	921040080264370

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12.	**AXIS BANK LIMITED** NOIDA BRANCH	Fixed Deposit	918040043509209
13.	**AXIS BANK LIMITED** NOIDA BRANCH	Fixed Deposit	922040056139562
14.	**AXIS BANK LIMITED** NOIDA BRANCH	Fixed Deposit	923040052872938
15.	**AXIS BANK LIMITED** NOIDA BRANCH	Fixed Deposit	920040014343240
16.	**STATE BANK OF INDIA**	Fixed Deposit	37453597336
17.	**STATE BANK OF INDIA**	Fixed Deposit	4039304764
18.	**PUNJAB NATIONAL BANK** NOIDA BRANCH	Fixed Deposit	6900PR00036361

C. Registration with Various Authorities under respective laws, Bodies etc. :

Name of Authority	Nature of registration	Registration Number
INCOME TAX DEPARTMENT	PAN	AADCD1177B
	TAN	MRTD02030A
SALES TAX DEPARTMENT		Not available
SERVICE TAX DEPARTMENT	S.T.REG.NO.	Not applicable
	INPUT SERVICE DISTRIBUTOR	
	REG.NO.	Not available
EXCISE & CUSTOMS	DGFT IE CODE NO.	
	BIN No.	
EXCISE REGISTRATION NO.		AADCD1177BEM001
PF REGISTRATION NO.		UP48823SU

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ESI REGISTRATION		216704018800110001
FACTORY LICENCE NO.		UPFA15000231 UPFA15000232 UPFA15000142
CONTRACTUAL LABOUR REGISTRATION NO.		CLRA/RLCLUCKNOW/2019/R-8

VEHICLES: (IF ANY)

Description	Registration number
Wagon-R Car	DL6CQ8790

For SANWARIYA GAS LIMITED

SANWARIYA GAS LIMITED

NARESH PODDAR
DIRECTOR
DIN : 06915370